**AMENDMENT NO. 1 TO THE AGREEMENT**
**BETWEEN THE CITY OF SAN MATEO AND FLOCK GROUP INC.**
**FOR CONTRACT FLOCK SAFETY PLATFORM PRODUCTS**
**(Original Amount $501,350; New Amount Not to Exceed $640,300)**

WHEREAS, the City of San Mateo ("City"), a municipal corporation of the State of California, and Flock Group, Inc.("CONTRACTOR"), entered into an Agreement for Flock Safety Platform products and services ("Agreement") on August 25, 2023; and

WHEREAS, City and CONTRACTOR wish to amend the Agreement effective March 4, 2024 to purchase fifteen (15) additional automated license plate reader devices for a three-year term; and update the City of San Mateo point of contact for the agreement.

NOW, THEREFORE, the parties agree as follows:

1. Exhibit C is added to the Agreement.

2. The "Customer Notice Address" of the Agreement is amended to read:
   ADDRESS: San Mateo Police Department
   200 Franklin Parkway, San Mateo CA 94403
   ATTN: Lieutenant Paul Pak
   EMAIL: pak@cityofsanmateo.org

3. The remaining terms of the Agreement remain in full force and effect.

[SIGNATURE PAGE FOLLOWS]

IN WITNESS WHEREOF, CITY OF SAN MATEO and FLOCK GROUP INC. have executed this Agreement the day and year as indicated below.

CITY OF SAN MATEO

Ed Barberini Date
Chief of Police

CONTRACTOR

Mark Smith Date
Its Authorized Agent and General Counsel

APPROVED AS TO FORM

Bahar Abdollahi Date
Assistant City Attorney

# Exhibit C

flock safety

## ORDER FORM

This order form ("**Order Form**") hereby incorporates and includes the terms of the previously executed agreement (the "**Terms**") which describe and set forth the general legal terms governing the relationship (collectively, the "**Agreement**" ). The Terms contain, among other things, warranty disclaimers, liability limitations and use limitations.

This additional services Agreement will be effective when this Order Form is executed by both Parties (the "**Effective Date**")

| | | | |
|---|---|---|---|
| Customer: | CA - San Mateo PD | Initial Term: | 36 Months |
| Legal Entity Name: | CA - San Mateo PD | Renewal Term: | 24 Months |
| Accounts Payable Email: | ttoomey@cityofsanmateo.org | Payment Terms: | Net 30 |
| Address: | 200 Franklin Parkway San Mateo, California 94403 | Billing Frequency: | 50% of Annual Contract + 100% of Implementation Invoiced at Signing. 25% of Annual Contract Invoiced at First Camera Validation. 25% of Annual Contract Invoiced at Last Camera Validation. Annual payments invoiced for remainder of subscription term. |
| | | Retention Period: | 30 Days |

**Hardware and Software Products**

Annual recurring amounts over subscription term

| Item | Cost | Quantity | Total |
|---|---|---|---|
| **Flock Safety Platform** | | | **$45,000.00** |
| **Flock Safety Flock OS** | | | |
| FlockOS ™ | Included | 1 | Included |
| **Flock Safety LPR Products** | | | |
| Flock Safety Falcon ® | Included | 13 | Included |
| **Flock Safety Video Products** | | | |
| Flock Safety Condor ™ PTZ w/ LTE Service | Included | 2 | Included |

## Professional Services and One Time Purchases

| Item | Cost | Quantity | Total |
|---|---|---|---|
| **One Time Fees** | | | |
| **Flock Safety Professional Services** | | | |
| Professional Services - Standard Implementation Fee | $650.00 | 1 | $650.00 |
| Professional Services - Existing Infrastructure Implementation Fee | $150.00 | 12 | $1,800.00 |
| Condor Professional Services - Standard Implementation Fee | $750.00 | 2 | $1,500.00 |
| | | **Subtotal Year 1:** | $48,950.00 |
| | | **Annual Recurring Subtotal:** | $45,000.00 |
| | | **Estimated Tax:** | $0.00 |
| | | **Contract Total:** | $138,950.00 |

*Taxes shown above are provided as an estimate. Actual taxes are the responsibility of the Customer. This Agreement will automatically renew for successive renewal terms of the greater of one year or the length set forth on the Order Form (each, a "**Renewal Term**") unless either Party gives the other Party notice of non-renewal at least thirty (30) days prior to the end of the then-current term.*

**Special Terms:**

• Flock allows BSCC, the Federal awarding agency, the Comptroller General of the United States, or any of their duly authorized representative, access to any books, documents, papers and records of the contractor which are directly pertinent to the program for the purpose of making audits, examinations, excerpts and transcriptions, for all contracts greater than $100,000. Flock agrees to be in compliance with Equal Employment Opportunity per Executive Order 11246 as amended by Executive Order 11375 and supplemented at 41 CFR 60.

# Billing Schedule

| Billing Schedule | Amount (USD) | Estimated Invoice Date |
|---|---|---|
| **Year 1 & 2** | | |
| At Contract Signing | $48,950.00 | 50% of Year 1 Annual + 50% of Year 2 Annual + One Time Implementation Fees at Contract Signing |
| At First Device Installed | $22,500.00 | 25% of Year 1 Annual + 25% of Year 2 on 04/1/2024 |
| At Last Device Installed | $22,500.00 | 25% of Year 1 Annual + 25% of Year 2 on 06/1/2024 |
| **Year 3** | $45,000.00 | Annual Recurring on 04/1/2025 |
| **Contract Total** | $138,950.00 | |

*Invoice dates are estimated and subject to change based on installation timeline.*

## Product and Services Description

| Flock Safety Platform Items | Product Description | Terms |
|---|---|---|
| Flock Safety Falcon ® | An infrastructure-free license plate reader camera that utilizes Vehicle Fingerprint® technology to capture vehicular attributes. | The Term shall commence upon first installation and validation of Flock Hardware. |
| Flock Safety Condor™ | Flock's pan, tilt, zoom (PTZ) or fixed cameras which capture video footage with the option to stream live video, capture and view video recordings, and upload videos. | The Term shall commence upon first installation and validation of Flock Hardware. |

| One-Time Fees | Service Description |
|---|---|
| Installation on existing infrastructure | One-time Professional Services engagement. Includes site & safety assessment, camera setup & testing, and shipping & handling in accordance with the Flock Safety Advanced Implementation Service Brief. |
| Professional Services - Standard Implementation Fee | One-time Professional Services engagement. Includes site and safety assessment, camera setup and testing, and shipping and handling in accordance with the Flock Safety Standard Implementation Service Brief. |
| Professional Services - Advanced Implementation Fee | One-time Professional Services engagement. Includes site & safety assessment, camera setup & testing, and shipping & handling in accordance with the Flock Safety Advanced Implementation Service Brief. |

## FlockOS Features & Description

| FlockOS Features | Description |
|---|---|
| Community Cameras (Full Access) | Access to all privately owned Flock devices within your jurisdiction that have been shared with you. |
| Unlimited Users | Unlimited users for FlockOS |
| State Network (LP Lookup Only) | Allows agencies to look up license plates on all cameras opted in to the statewide Flock network. |
| Nationwide Network (LP Lookup Only) | Allows agencies to look up license plates on all cameras opted in to the nationwide Flock network. |
| Direct Share - Surrounding Jurisdiction (Full Access) | Access to all Flock devices owned by law enforcement that have been directly shared with you. Have ability to search by vehicle fingerprint, receive hot list alerts, and view devices on the map. |
| Time & Location Based Search | Search full, partial, and temporary plates by time at particular device locations |
| License Plate Lookup | Look up specific license plate location history captured on Flock devices |
| Vehicle Fingerprint Search | Search footage using Vehicle Fingerprint™ technology. Access vehicle type, make, color, license plate state, missing / covered plates, and other unique features like bumper stickers, decals, and roof racks. |
| Flock Insights/Analytics page | Reporting tool to help administrators manage their LPR program with device performance data, user and network audits, plate read reports, hot list alert reports, event logs, and outcome reports. |
| ESRI Based Map Interface | Flock Safety's maps are powered by ESRI, which offers the ability for 3D visualization, viewing of floor plans, and layering of external GIS data, such as City infrastructure (i.e., public facilities, transit systems, utilities), Boundary mapping (i.e., precincts, county lines, beat maps), and Interior floor plans (i.e., hospitals, corporate campuses, universities) |
| Real-Time NCIC Alerts on Flock ALPR Cameras | Alert sent when a vehicle entered into the NCIC crime database passes by a Flock camera |
| Unlimited Custom Hot Lists | Ability to add a suspect's license plate to a custom list and get alerted when it passes by a Flock camera |

**By executing this Order Form, Customer represents and warrants that it has read and agrees to all of the terms and conditions contained in the previously executed agreement.**

The Parties have executed this Agreement as of the dates set forth below.

| **FLOCK GROUP, INC.** | | **Customer: CA - San Mateo PD** | |
|---|---|---|---|
| By: | _____ | By: | _____ |
| Name: | _____ | Name: | _____ |
| Title: | _____ | Title: | _____ |
| Date: | _____ | Date: | _____ |
| | | PO Number: | _____ |